

STATE OF NEW YORK

1985--A

Cal. No. 182

2025-2026 Regular Sessions

IN SENATE

January 14, 2025

Introduced by Sen. HARCKHAM -- read twice and ordered printed, and when printed to be committed to the Committee on Codes -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, passed by Senate and delivered to the Assembly, recalled, vote reconsidered, restored to third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the criminal procedure law, in relation to requiring police officers to take temporary custody of firearms when responding to reports of family violence

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Paragraphs (a) and (c) of subdivision 6 of section 140.10 of the criminal procedure law, as added by section 2 of part M of chapter 55 of the laws of 2020, are amended to read as follows:

(a) (i) A police officer who responds to a report of a family offense as defined in section 530.11 of this chapter and section eight hundred twelve of the family court act:

(1) may take temporary custody of any firearm, rifle, electronic dart gun, electronic stun gun, disguised gun, imitation weapon, shotgun, antique firearm, black powder rifle, black powder shotgun, or muzzle-loading firearm that is in plain sight or is discovered pursuant to a consensual or other lawful search~~[-and]~~;

(2) shall take temporary custody of any ~~[such weapon]~~ firearm, rifle, electronic dart gun, electronic stun gun, disguised gun, imitation weapon, shotgun, antique firearm, black powder rifle, black powder shotgun, or muzzle-loading firearm that is in the possession of any person arrested for the commission of ~~[such]~~ a family offense or suspected of its commission~~[-]~~; and

(3) shall take temporary custody of any firearm, rifle, electronic dart gun, electronic stun gun, disguised gun, imitation weapon, shotgun, antique firearm, black powder rifle, black powder shotgun, or

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

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1 muzzle-loading firearm that is in plain sight or is discovered pursu-
2 ant to a consensual or other lawful search if any one of the following
3 circumstances is present:

4 A. the victim responds in the affirmative to the suspect threats ques-
5 tions in the victim interview section in the prior history section of
6 the New York state standardized domestic incident report (DIR) form; or

7 B. the victim responds in the affirmative to any of the lethality
8 assessment questions in the prior history section of the New York state
9 standardized domestic incident report (DIR) form; or

10 C. any responding officer has a reasonable belief that it is necessary
11 to remove such weapon to protect the victim or other persons present, or
12 to prevent risk of further violence or threat.

13 (ii) An officer who takes custody of any weapon pursuant to this para-
14 graph shall also take custody of any license to carry, possess, repair,
15 and dispose of such weapon issued to the person arrested or suspected of
16 such family offense. The officer shall deliver such weapon and/or
17 license to the appropriate law enforcement officer as provided in
18 subparagraph (f) of paragraph one of subdivision a of section 265.20 of
19 the penal law.

20 (c) Not less than [~~forty-eight~~] one hundred twenty hours after effect-
21 ing such seizure, and in the absence of (i) an order of protection, an
22 extreme risk protection order, or other court order prohibiting the
23 owner from possessing such a weapon and/or license, or (ii) a pending
24 criminal charge or conviction which prohibits such owner from possessing
25 such a weapon and/or license, and upon a written finding that there is
26 no legal impediment to the owner's possession of such a weapon and/or
27 license, the court or, if no court is involved, licensing authority or
28 custodian of the weapon shall direct return of a weapon not otherwise
29 disposed of in accordance with subdivision one of section 400.05 of the
30 penal law and/or such license taken into custody pursuant to this
31 section.

32 § 2. This act shall take effect immediately.